

Statement of Work

NO. 1 Sept/24 / Ops Design Agency Retainer

This SOW is entered into and made effective as of 24.09.2024 ("SOW Effective Date") by and between:

- (1) **TIKTOK INFORMATION TECHNOLOGIES UK LIMITED**, a company registered in England and Wales (company number 10165711) whose registered office is at Kaleidoscope, 4 Lindsey Street, London, United Kingdom, EC1A 9HP ("Client"); and
- (2) **TIKTOK TECHNOLOGY LIMITED**, a company registered in Ireland (company number 635755) with its registered office at 10 Earlsfort Terrace, Dublin, D02 T380, Ireland ("TikTok IRE"); and
- (3) **SASU SARANI**, a company registered in France (company number 881687503) whose registered office is at 7 allée d'Orléans, 92200 Neuilly-sur-Seine, Paris ("Agency"),

each referred to as a "Party", and collectively as the "Parties".

This SOW is governed by the terms and conditions of the UK/EU Creative Services Agreement (Framework) between Client and Agency with an effective date of 21.12.2023 ("Agreement"). To the extent this SOW relates to the provision of Services by Agency to Client in a territory covered by an Affiliate Addendum, the terms of that Affiliate Addendum will apply to the Services in that territory (it being acknowledged that clause 2.5 of the Agreement shall resolve any conflicts or inconsistencies between the terms of the Agreement, the terms of the applicable Affiliate Addendum, and the terms of this SOW. Capitalised terms used but not defined in this SOW shall have the meaning set out in the Agreement or the applicable Affiliate Addendum.

Background: Client wishes to engage Agency to provide various creative, production and/or other marketing-relating services in respect of its:

☒ TikTok in App Campaigns ("Campaign"). The Campaign is intended to drive in app engagement, publish count and professional generated content.

1.	Term	Unless terminated earlier in accordance with the terms of the Agreement and any Applicable Affiliate Addendum, the term of this SOW shall commence on the SOW Effective Date and shall expire on the later of: (a) acceptance by Client of the performance of the Services and delivery of the Deliverables in accordance with the Agreement (including this SOW); and (b) 31.12.2025 ("SOW Term").
2.	Services	Agency shall perform the following services ("Services"): - Design in app campaigns based on briefing from TikTok and according to TikTok brand guidelines a) General account, project and budget management services: Agency will provide account and project management services to ensure: (i) the Services are performed, and the Deliverables are delivered, in accordance with: (1) the brief notified by Client from time to time in writing (email being sufficient) or otherwise developed by Agency and accepted by Client in accordance with this SOW (as applicable) (the "Brief"); and (2) any and all applicable Specifications; and (3) coordination and management of all Personnel, Key Personnel and Subcontractors (including to unblock impediments); and (4) Client is regularly updated on all material matters related to this SOW. b) Strategic and creative development services: Agency will provide strategic and creative development services to: (i) define the core strategic direction for the Campaign and/or Production and/or Event (as applicable); and (ii) develop a creative and visual direction for the Campaign and/or Production and/or Event. c) Pre-production services: Agency will provide pre-production scoping and management services in relation to the Production and/or Event (as applicable), including: (i) Ongoing storyboard, script and narration services: Agency will (and will cause its Personnel and applicable Key Personnel and Subcontractors to) write and deliver any required script(s) (including for narration) and/or storyboards in accordance with the instructions of Client. (ii) Selection and licensing of any required Third Party Materials: Agency will select, propose to Client, and (subject to the Client's prior written approval) licence any Third Party Materials to be incorporated into any Deliverables (which are summarised in paragraph 10 below). (iii) Obtaining all required permits, consents, clearances and waivers: Agency will advise Client in relation to, and negotiate directly (as required by, and in the best interests of, Client) with any relevant authorities, companies and/or individuals to secure any necessary permits, approvals, licences, consents, permissions and waivers in

		connection with the Production and/or Event (as applicable) and all Deliverables (including any location releases from owners of locations featured within the Deliverables, image releases and waivers of, or agreements not to assert, moral rights from any and all Talent and/or cast who feature within, or contribute to, the Deliverables). Upon request, Agency will provide Client with copies of all permits, consents, clearances permissions and waivers required for the Production and/or Event (as applicable).												
3.	Deliverables	Deliverables will be defined in a dedicated Brief.												
4.	Specifications	Deliverables shall be provided in accordance with the following specifications (“Specifications”): (a) the brief notified by Client from time to time in writing (email being sufficient) or otherwise developed by the Agency and accepted by Client in accordance with this SOW (as applicable) (the “Brief”); (b) any Deliverable-specific specifications set out in paragraph 3 above; and												
5.	Acceptance	Agency will submit each Deliverable in accordance with the dates specified in the Project Schedule. Client will review each Deliverable to accept or reject based on whether such Deliverable conforms to the Brief and applicable Specifications. In addition, Client has the right to request an unlimited number of edits to each Deliverable at no additional cost for subjective creative reasons. If Client rejects a Deliverable for non-conformity or wishes to exercise its right of edit, Client will notify Agency in writing (email being sufficient) and Agency will promptly carry out the required modifications at no additional cost and re-submit the applicable Deliverable for Client’s approval as soon as possible and in any event within 48 hours (unless otherwise agreed with Client in writing (email being sufficient)). Unless otherwise directed by Client in writing (email being sufficient), upon any re-submission, the Parties will repeat the procedure set out above until approval of Client is achieved. Acceptance of Deliverables under clause 5.6 of the Agreement shall be given by a Client Authorised Representative.												
6.	Reporting	Agency shall prepare written reports for Client on an as requested basis during the course of this SOW and for 3 months thereafter. Such reports shall be sent to a Client Authorised Representative via email sent to the email address stated in this SOW.												
7.	Personal Data	☒ N/A ☐ TikTok UK and TikTok IRE (as joint controllers) share Personal Data with the Agency with the description of the processing set out in the table below. <table><tr><td>Controller / Data Exporter</td><td>TikTok UK and TikTok IRE as joint controllers of Personal Data of TikTok Data Subjects.</td></tr><tr><td>Processor / Data Importer</td><td>Agency.</td></tr><tr><td>TikTok Data Subjects</td><td>The Personal Data to be Processed concerns users of the TikTok web, mobile or TV application.</td></tr><tr><td>Categories of data</td><td>The Personal Data to be Processed concerns the following categories of Personal Data: names and/or other personal data processed by accessing TikTok Data Subject videos/comments/posts in connection with the provision of Services.</td></tr><tr><td>Special categories of personal data</td><td>It is not anticipated that special categories of Personal Data will be processed.</td></tr><tr><td>Processing operations</td><td>The Personal Data will be subject to the following basic processing activities: collecting, transferring, storing Personal Data in order to provide the Services.</td></tr></table>	Controller / Data Exporter	TikTok UK and TikTok IRE as joint controllers of Personal Data of TikTok Data Subjects.	Processor / Data Importer	Agency.	TikTok Data Subjects	The Personal Data to be Processed concerns users of the TikTok web, mobile or TV application.	Categories of data	The Personal Data to be Processed concerns the following categories of Personal Data: names and/or other personal data processed by accessing TikTok Data Subject videos/comments/posts in connection with the provision of Services.	Special categories of personal data	It is not anticipated that special categories of Personal Data will be processed.	Processing operations	The Personal Data will be subject to the following basic processing activities: collecting, transferring, storing Personal Data in order to provide the Services.
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8.	Retained Rights	☒ N/A ☐ Agency will incorporate in Work Product the following Retained Rights: N/A These Retained Rights are subject to the licence terms set out in clause 8.4 of the Agreement.												

9.	Third Party Materials	☒ N/A ☐ Agency intends to incorporate Third Party Materials into Work Product (including AI Materials). The table below specifies the terms of any licence(s) granted to Client by the Agency or its licensors in respect of any Third Party Materials incorporated in any Work Product subject to and in accordance with clause 4.6 of the Agreement (if applicable). <table><tr><td>Third Party Materials</td><td>Licence granted</td><td>Licence restrictions</td><td>Territorial restrictions</td><td>Licence duration</td><td>Additional requirements</td></tr><tr><td>N/A</td><td>N/A</td><td>N/A</td><td>N/A</td><td>N/A</td><td>N/A</td></tr></table>	Third Party Materials	Licence granted	Licence restrictions	Territorial restrictions	Licence duration	Additional requirements	N/A	N/A	N/A	N/A	N/A	N/A
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N/A	N/A	N/A	N/A	N/A	N/A									
10.	Fees	☒ OPTION 1 (Fixed Fees) Client shall pay to Agency the amount of 28,000.00 EUR excluding VAT, a total of 28,000.00 EUR including VAT ("Agency Fees"), in consideration of Services performed by Agency as stipulated under this SOW. The total amount payable to Agency under this SOW (including Agency Fees and Third Party Costs, but excluding any Expenses) shall be 28,000.00 EUR excluding VAT, a total of 28,000.00 EUR including VAT ("Total Fees"). In no event shall the amount paid to Agency under this SOW exceed the Total Fees stated in this paragraph. A detailed breakdown of the Total Fees is set out in Appendix 1 to this SOW.												
11.	Expenses	The following Expenses are pre-approved by Client: N/A. Any and all other Expenses remain subject to Client's prior written approval in accordance with clause 5.2 of the Agreement.												
12.	Payment	Subject to the receipt of an undisputed invoice by Client in accordance with the invoicing schedule below, Client shall pay to Agency the agreed Fees, Expenses (if applicable) and Third Party Costs (if applicable) in accordance with the invoicing and payment schedule below (or if no payment date is listed, within forty-five (45) days) after Client confirms Agency: a) has provided the fully executed copy of the Agreement and this SOW; b) its acceptance of the Deliverables in accordance with clause 5.6 of the Agreement and paragraph 6 of this SOW; and c) has provided to Client a valid invoice together with any and all other documents as required under the Agreement and this SOW. Incomplete invoices will not be paid until all requested information has been received by Client. <u>Invoicing and payment schedule</u> <table><tr><td>Instalment No.</td><td>Description</td><td>Amount</td><td>Issue Date</td><td>Payment Date</td></tr><tr><td>1</td><td>According to the delivered Services</td><td>Depending on delivered Services</td><td>Each month</td><td>Within 45 days from the Issue Date</td></tr></table>	Instalment No.	Description	Amount	Issue Date	Payment Date	1	According to the delivered Services	Depending on delivered Services	Each month	Within 45 days from the Issue Date		
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13.	Authorised Representatives	Client Authorised Representative(s) Name(s): Viktoria Adams Email(s): viktoria.adams@tiktok.com Agency Authorised Representative(s) Name(s): Emmanuel Gomez Email(s): Team@sarani.studio Each Party may amend its representatives and/or email address(es) from time to time on written notice to the other Party.												
14.	Key Personnel	The following individuals shall be deemed Key Personnel and the terms of clause 4.4 of the Agreement shall apply to each of them: N/A.												
15.	Subcontractors	The following Subcontractors are deemed approved by Client to perform the relevant Services and deliver the relevant Deliverables (as specified in the table below), subject to clause 4.5 of the Agreement: N/A.												
16.	Refund	Agency shall refund Client any and all Fees and Third Party Costs paid by Client which relate to: a) Services (or part thereof) and/or Deliverables (or part thereof): (i) not performed/delivered; and (ii) not performed/delivered to Client's reasonable satisfaction and approval in accordance with the terms of the Agreement (including this SOW); and												

		b) any budget underspend for whatever reason (an “Overpayment”). Upon expiry or termination of this SOW, Agency shall report to Client the amount of any Overpayment together with reasonable documentary evidence. Any refund to which Client is entitled under this paragraph 18 will be due and payable by Agency within forty-five (45) days of receipt of an invoice from Client for such amount. Client may at any time, without notice to Agency, set off any liability of Client to Agency against any liability of Agency to Client under this paragraph 18.
17.	Client Competitors	The following shall be regarded as Client Competitors (referred to in clause 6.2 of the Agreement) for the purposes of this SOW: N/A.
18.	Deviations from the Agreement	Where the Agreement allows for deviations in a SOW, such deviations shall be specified in this section and shall cite the specific clause in the Agreement being deviated from. Any deviation(s) from the Agreement not included within this section shall be considered void, and the original provision(s) of the Agreement shall continue to apply. For the purposes of this SOW, the following deviations from the Agreement shall apply: a) Deviation from N/A b) Deviation from clause N/A

This SOW has been signed by _____ as of the SOW Effective Date.

TIKTOK INFORMATION TECHNOLOGIES UK LIMITED
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SASU SARANI

DocuSigned by:
Emmanuel Gomez
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By: _____
Name: **Harsh Vekaria**
Title: **Director**
Date: **Oct 25, 2024 | 10:37:34 AM CST**

By: _____
Name: **Emmanuel Gomez**
Title: **CEO**
Date: **oct. 24, 2024 | 6:25:43 PM BST**

TIKTOK TECHNOLOGY LIMITED
A17ED84360DA40B...

By: _____
Name: **Elaine Fox**
Title: **Director**
Date: **Oct 25, 2024 | 10:44:45 AM CST**